

CASE SUMMARY

State (BSES YPL) v. Momin & Anr.

SC No. 231/2021 | FIR No. 375/2019, PS Gandhi Nagar | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

COURT	Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi
JUDGE	Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)
DATE OF JUDGMENT	19 May 2026 (date of inspection / offence: 26 August 2019)
PARTIES	State (BSES Yamuna Power Ltd.) v. (1) Momin S/o Sh. Noor Mohammad (user of electricity); (2) Sabira W/o Sh. Noor Mohammad (registered consumer), both R/o E-78/107, Gali No. 1, Chander Puri, Gandhi Nagar, Delhi-110031
STATUTES INVOKED	Sections 135, 150 & 2(15), Electricity Act, 2003 (and third proviso to s. 135(1)); Section 24, IPC; Sections 65B, 106 & 4, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.; Regulations 60–63, DERC (Supply Code) Regulations, 2007
RESULT	Momin convicted under Section 135; Sabira convicted under Section 135 read with Section 150, Electricity Act, 2003. Civil liability settled during trial but the settlement amount was not deposited (financial constraints pleaded). Matter posted for hearing on quantum of sentence.

CHARGE BEFORE THE COURT

Whether Momin, the user of electricity at the inspected premises, dishonestly abstracted electricity by tapping the licensee's AB conductor through single-core insulated wires operated via a change-over switch, attracting Section 135 of the Electricity Act, 2003; and whether Sabira — the registered consumer in whose name the installed meter stood — abetted that theft by permitting or consciously allowing it, attracting Section 135 read with Section 150. The case also raised the definitional question whether a registered consumer who is not herself the user falls within “consumer” under Section 2(15) so as to be answerable for illegal abstraction found at her premises.

FACTS

On 26 August 2019 at about 2.15 p.m., an inspection team of BSES Yamuna Power Ltd. headed by Sh. Jitender Kumar (Manager) inspected the residential premises at E-78/107, Gali No. 1, Chander Puri, Gandhi Nagar, Delhi. A meter (No. 35031265) registered in the name of Sabira was found installed — but lying in stopped condition — while Momin, her son and the user of the electricity, was found drawing supply directly from the BSES YPL AB conductor through single-core insulated wires connected via a change-over switch, rigged so that the outgoing supply could be flipped between the meter and the stolen feed at will and so that the mechanism was not visible to others. Momin was present at the spot; the connected load was 2.102 KW, used for commercial purposes (automatic collar-pasting work). The proceedings were videographed by Sh. Jasveer Singh; inspection documents were prepared at the spot; and the

company assessed a theft demand of Rs. 1,82,203/-, which went unpaid. On the Authorised Officer's complaint, FIR No. 375/2019 was registered and, after investigation, a charge-sheet was filed.

Notice under Section 251 Cr.P.C. was given on 9 January 2024 — to Momin under Section 135, and to Sabira under Section 135 read with Section 150; both pleaded not guilty. The prosecution examined three witnesses: PW-2 Jitender Kumar (inspection team head; proved the videography CD Ex.PW2/A, inspection report, load report, seizure memo, advisory notice, theft bill and complaint, and the seized single-core aluminium wires Ex.P1); PW-3 Jasveer Singh (videographer; proved the video and, notably, a certificate under Section 65B of the Evidence Act as Ex.PW3/A); and PW-1 ASI Mohanbir (IO; proved the rukka endorsement, FIR, site plan, Section 41A notices, interrogation report, the accused persons' Aadhaar cards, an electricity bill in Sabira's name, and statements of neighbours Deepak Kashyap and Ratik Khan confirming the accused persons' possession of the premises). Under Section 313 Cr.P.C. both accused denied everything and pleaded false implication, and led no defence evidence. Their counsel submitted that the civil liability had been settled during trial but the settlement amount could not be deposited due to financial constraints.

REASONING OF THE COURT

HEADNOTE

“Consumer” in Section 2(15) of the Electricity Act covers both the user of electricity and the registered consumer of the premises; a registered consumer who knows her meter is lying stopped yet permits the user to draw supply through a concealed change-over switch tapped to the licensee's conductor abets the theft and is punishable under Section 135 read with Section 150 with the same punishment as the principal offender. The third proviso to Section 135(1) casts the rebuttal burden on both: absent proof of lawful, metered use, the presumption of dishonest abstraction stands against user and registered consumer alike.

A registered consumer is a “consumer” under Section 2(15) even if someone else uses the electricity. Reproducing Section 2(15), the Court held that both the user and the owner/registered consumer of the premises fall within the definition, so Sabira was answerable once illegal abstraction was found at her premises; it drew support from *Lokesh Chandela v. State of NCT & Ors.* (Delhi HC, CrI. A. 479/2011).

The change-over-switch mechanism was itself the proof of dishonest design. The video (Ex.PW2/A), played in court, showed illegal wires tapped from the BSES YPL network feeding a change-over switch inside the premises, letting the occupants flip the outgoing supply between the stopped meter and the stolen feed at will, concealed from outside view. No Genset existed that could innocently explain the switch. Momin disputed neither his identity in the video nor the identity of the premises, and the cross-examination never challenged the tapping, the switch, or the seizure.

The inspection stood proved through unshaken official testimony — and the defence's own questions. PW-2 and PW-3, the inspection team's prime witnesses, were consistent and uncontradicted on the factum of inspection, the 2.102 KW commercial load (automatic collar-pasting work), the seizure under memo, and the videography (here supported by a Section 65B certificate, Ex.PW3/A). The defence's cross-examination — eliciting that the inspection was ordered orally by the (late) Assistant Vice President and that the meter stood in Sabira's name while theft proceeded through a network-connected wire — was treated as effectively admitting the inspection. The absence of a public witness was no infirmity absent any shown animosity (*Ashwani Kumar; Sushil Sharma*), and no procedural lapse under DERC Regulations 60–63 was even suggested.

The statutory presumption operated against both accused, and neither rebutted it. Once the unauthorised means of abstraction was proved, the third proviso to Section 135(1) — a compulsory “shall presume” clause (*Neeraj Dutt*),

rebuttable on the prudent-man standard (*Hiten P. Dalal*) — obliged the accused to show lawful, metered use. Neither led any defence evidence. The meter admittedly stood in Sabira’s name but was lying stopped; both accused were in use and occupation of the premises; and the easiest rebuttal — proof of drawing through their own meter, i.e. paid bills, per *Mukesh Rastogi* and Section 106 of the Evidence Act — was never attempted by either the user or the registered consumer.

Settling the theft bill — even without depositing the amount — corroborated guilt. The accused settled the civil liability on the Rs. 1,82,203/- theft bill during trial (pleading financial constraint for non-deposit). Had the inspection been fabricated and the bill baseless, the Court reasoned, the accused would have protested and proceeded against the company rather than settling; their conduct fortified the prosecution case.

Sabira’s knowledge and permission made out abetment under Section 150. As registered consumer she knew the meter was lying in stopped condition, yet permitted and consciously allowed Momin — found by the Court to share the intention to commit direct theft — to use electricity at the premises. That conscious allowance constituted abetment of the theft, punishable under Section 150 with the punishment provided for the principal offence.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 2(15) — “Consumer”

Interpreted to cover both the person actually using the electricity and the owner/registered consumer of the connected premises. The registered consumer therefore cannot disown liability for illegal abstraction found at her premises merely because another (here, her son) was the user (*Lokesh Chandela* followed).

Section 135(1) — Theft of Electricity

Direct tapping of the licensee’s AB conductor through insulated wires routed via a concealed change-over switch — enabling supply to be flipped between the stopped meter and the stolen feed — is direct theft. “Dishonestly” takes its meaning from Section 24 IPC; the hidden switch, the stopped meter and the absence of any Genset explanation together evidenced the dishonest design.

Third Proviso to Section 135(1) — Presumption of Dishonest Use

The compulsory presumption arises on proof of an artificial/unauthorised means of abstraction and operates against the user *and* the registered consumer alike: each must rebut it on the prudent-man standard, the natural mode being proof of lawful, metered use (paid bills), with the Section 106 Evidence Act onus on the accused. Neither accused attempted rebuttal.

Section 150 — Abetment

A registered consumer who, knowing her meter is lying stopped, permits or consciously allows the user to draw supply through an unauthorised connection abets the theft; by Section 150(1) the abettor incurs the same punishment as the principal offence, notwithstanding anything in the IPC.

DERC (SUPPLY CODE) REGULATIONS, 2007 — REGULATIONS 60 TO 63

The Court reproduced Regulations 60–63 — the inspection power and identification safeguards (Reg. 60), the contemporaneous inspection report with seizure, sealing and video documentation (Reg. 61), the prosecution procedure including the 24-hour police complaint and the caution that a missing seal alone is insufficient (Reg. 62),

and the assessment at twice tariff for up to twelve months with credit for paid units (Reg. 63). No procedural lapse was suggested in cross-examination, and compliance was treated as confirming the inspection's regularity; the Rs. 1,82,203/- assessment measured the theft.

HELD

The prosecution proved beyond reasonable doubt that user Momin indulged in direct theft of electricity through an illegal wire and external device, and that Sabira, the registered consumer, permitted and consciously allowed him to do so. **Momin is convicted under Section 135 of the Electricity Act, 2003; Sabira is convicted under Section 135 read with Section 150 of the Electricity Act, 2003.** The convicts are to be heard on the quantum of sentence.

SIGNIFICANCE

The judgment extends the familiar direct-theft framework in three directions — the liability of non-user registered consumers, concealed switching devices as evidence of design, and the treatment of an unconsummated settlement. Six propositions stand out:

- **Registered consumers cannot hide behind the actual user.** Section 2(15) makes both the user and the registered consumer “consumers”; a registered consumer who knowingly permits theft at her premises is punished as an abettor under Section 150 with the same punishment as the thief (*Lokesh Chandela*).
- **A change-over switch is treated as a badge of dishonesty.** A concealed switch letting the occupant flip between metered and stolen supply — with the meter lying stopped and no Genset to explain it — itself evidences the dishonest design.
- **A stopped meter plus running appliances shifts the explanatory burden.** Once the unauthorised means is proved, the third proviso presumption operates against user and registered consumer alike, and only proof of lawful metered use (paid bills, Section 106 onus, *Mukesh Rastogi*) rebuts it.
- **Commercial use on a domestic premises aggravated the assessment.** The 2.102 KW load ran a collar-pasting business, producing a theft bill (Rs. 1,82,203/-) an order of magnitude above comparable domestic-use cases.
- **Settlement corroborates guilt even if the money is never paid.** Agreeing to settle the theft bill — despite failing to deposit the amount — was read as conduct inconsistent with innocence.
- **A public witness remains unnecessary.** Official inspection testimony, videographed and (here) 65B-certified, suffices absent shown enmity (*Ashwani Kumar*; *Sushil Sharma*).

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court's own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Lokesh Chandela v. State of NCT & Ors.</i> Delhi HC, CrI. A. 479/2011	Both the user of electricity and the owner/registered consumer of the premises fall within “consumer” under Section 2(15), making the registered consumer answerable for illegal abstraction found at the premises.	Relied on

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569	An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.	Relied on
<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, Crl. A. 1060/2010 (22.12.2010)	Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.	Relied on
<i>Neeraj Dutt v. State</i> SLP(Crl.) 6497/2020	“Shall presume” denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.	Relied on
<i>Hiten P. Dalal v. Bratindranath Banerjee</i> 2001 (6) SCC 16	A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.	Relied on
<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.